

24VECV00454 24VECV00454

County: los-angeles
Division: Civil Law and Motion
Department: O
Hearing date: 2026-08-25
Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C08%2F25%2F2026
Source SHA-256: 45b74548168e4168f609f32293ef0f017949d5e2f6501ebb8030607887ecaa85

Case Number: 24VECV00454 Hearing Date: August 25, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

PIERCE
P. SHAAD, an individual,

Plaintiff,

vs.

PAULA
DRESSER, an individual; LEONARD LEVINE, trustee of the Levine Family Trust
dated April 2, 2019; LISA LEVINE, trustee of the Levine Family Trust dated
April 2, 2019; LA CASA ROYALE (JLP ENTERPRISES), a business entity of unknown
form; DOES 1-20,

Defendants.

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CASE NO.: 24VECV00454

ORDER

GRANTING PLAINTIFF'S MOTION FOR LEAVE TO AMEND

PAULA

DRESSER; LEONARD LEVINE AND LISA LEVINE, AS TRUSTEES OF THE LEVINE FAMILY
TRUST DATED APRIL 2, 2019; AND LA CASA ROYALE (JLP ENTERPRISES),

Plaintiff,

VS.

PIERCE

P. SHAAD, AN INDIVIDUAL; AND ROES 1 TO 10, INCLUSIVE,

Defendants.

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I.

BACKGROUND

Plaintiff Pierce P.

Shaad ("Plaintiff") brings this action against La Casa Royale (JLP Enterprises) ("JLP"), Paula Dresser ("Dresser"), and Leonard Levine and Lisa Levine as trustees of the Levine Family Trust dated April 2, 2019. Plaintiff alleges he entered into a lease agreement with JLP wherein they agreed to specific parking spaces to accommodate Plaintiff's physical limitations. Plaintiff alleges JLP, through Dresser, retaliated against Plaintiff for his delay in rent payments during the Covid-19 pandemic by changing his parking spaces to significantly farther spots.

Plaintiff moves for

leave to amend the Complaint to add a cause of action.

II.

PROCEDURAL

HISTORY

On February

1, 2024, Plaintiff filed a Complaint alleging (1) Breach of Lease, (2) Breach of Quiet Enjoyment, (3) Retaliation, and (4) Retaliation (Civil Code § 1942.5(d).)

On March 25,

2024, Defendants filed an Answer and Cross-Complaint.

On July 3,

2025, Plaintiff designated Joel Rotham as Doe 1.

On July 18,
2025, Plaintiff corrected the name of La Casa Royale (JLP Enterprises), a
business entity of unknown form to JLP Enterprises, a general partnership.

On September
18, 2025, Defendants filed their Answer.

On July 17,
2026, Plaintiff filed the instant Motion for Leave.

On August 11,
2026, Defendants filed an Opposition.

On August 12,
2026, Plaintiff filed a Reply.

III.

LEGAL STANDARD

Code of Civil

Procedure § 473(a) [1] provides: “The court may
likewise, in its discretion, after notice to the adverse party, allow, upon any
terms as may be just, an amendment to any pleading or proceeding in other
particulars; and may upon like terms allow an answer to be made after the time
limited by this code.” (Code Civ. Proc. § 473(a)(1); see also Code Civ.
Proc. § 576.)

The court has
broad discretion to permit amendments to pleadings, and “the court’s discretion
will usually be exercised liberally to permit amendment of the pleadings.” (Howard
v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “The policy favoring amendment is so strong that it
is a rare case in which denial of leave to amend can be justified.” (Id.) “If the
motion to amend is timely made and the granting of the motion will not
prejudice the opposing party, it is error to refuse permission to amend.” (Morgan v. Superior Court (1959) 172
Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical
evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New
York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion for
leave to amend a pleading must comply with the procedural requirements of Rules

of Court, rule 3.1324, under which the motion must include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (See Rules of Court, rule 3.1324(a), (b).)

IV.

ANALYSIS

Plaintiff

seeks leave to add a fifth cause of action for defendants' violations of Los Angeles City Ordinance 187109 (article 5.3).[2] (See Notice at 1:26-27.) Plaintiff contends he first learned Dresser did not double the security deposit for any other tenant besides Plaintiff during Dresser's deposition on April 10, 2025. (See Mot. at 3:13; Declaration of Jeffrey A. Cohen filed July 16, 2026 ("Cohen Decl."), ¶ 3.) Plaintiff explains Jessica Dresser confirmed in her deposition on June 9, 2026, that Dresser swapped her parking spaces with Plaintiff's. (See Mot. at 3:19-22.) Plaintiff also attests he learned after the filing of this action his rent was raised in a greater amount than it was for other tenants. (See Declaration of Pierce P. Shaad filed July 16, 2026, ¶ 4.)

On April 27, 2026, Plaintiff's counsel met and conferred with Defendants' counsel about stipulating to amending the Complaint, but Defendants declined the request. (See Mot. at 3:26-4:9.) Plaintiff attaches a redlined copy of the proposed First Amended Complaint. (See Cohen Decl., ¶ 2, Ex. 1.)

In

opposition, Defendants argue Plaintiff does not satisfy Rule 3.1324(b)(4) because he does not explain why he delayed in seeking leave so close to the discovery cutoff date when he knew since April 10, 2025, that Dresser doubled Plaintiff's security deposit. (See Opp. at 6:11-28.) Defendant argues Plaintiff did not need to wait for Jessica Dresser's deposition to seek leave as the proposed fifth claim rests on the security deposit testimony obtained in Dresser's deposition. (See *id.*, at 7:7-16.) Finally, Defendants argue they will be prejudiced if the Motion is granted. Defendants argue percipient discovery is essentially complete and discovery closes November 7, 2026. (See Opp. at 9:1-4.) If the Motion is granted, Defendants will need to conduct additional discovery,

including a second deposition of Plaintiff and the depositions of Plaintiff's parents, to address the elements of the new claim. (See id., at 9:6-11, 9:16-20; Declaration of Gary D. Fidler filed August 11, 2026, ¶¶ 5-6.) Defendants contend such discovery would require at least six months to conduct and would require trial be continued. (See id.)

In reply,

Plaintiff argues his deposition has not been completed and Defendants will have time to depose Plaintiff's parents. (See Reply at 2:22-23.) Plaintiff argues he waited until completing Defendants' depositions and Jessica Dresser's deposition before seeking leave to amend as additional facts might have been and were, in fact discovered that support the ordinance claim. (See id., at 3:3-6.)

The Court

will grant the Motion. The Court finds Plaintiff substantially complies with Rule 3.1324(a), as a redlined copy of the proposed FAC is attached to the motion. (See Rules of Court, rule 3.1324(a).) The Court finds Plaintiff also substantially complies with Rule 3.1324(b)(4), which requires the party explain the reasons why the request for the amendment was not made earlier. Plaintiff's proposed fifth cause of action is based upon facts discovered at Dresser's deposition, which occurred on April 10, 2025. Defendant is correct that Plaintiff's counsel's initial declaration does not explain why he waited until April 27, 2026, to first raise the issue with Defendants' counsel about amending the Complaint. However, Plaintiff's counsel explains in reply he waited to seek leave because he believed he could discover more facts at Jessica Dresser's deposition that would support the proposed fifth claim. (See Reply at 3:3-6.) Given the totality of the record, the Court finds Plaintiff has adequately complied Rule 3.1324(b)(4).

"Where no

prejudice is shown to the adverse party, the liberal rule of allowance prevails." The Court notes trial is scheduled for December 7, 2026, with the discovery cutoff on November 7, 2026. While Defendants would incur an increased burden in discovery, given they have concluded most depositions and written discovery, having to engage in discovery practice is a basic feature of litigation, not proof of actual prejudice. Additionally, this Motion is not brought on the eve of trial, trial has been continued once before, and although the Court sees no need to continue trial now, it can continue the trial date to allow the parties to conduct necessary discovery if

appropriate.

Based on the foregoing and the liberal policy favoring amendment, the Court GRANTS Plaintiff's Motion for Leave to Amend.

V.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's Motion for Leave to Amend.

Plaintiff is ordered to file its proposed amended complaint by no later than August 28, 2026.

IT
IS SO ORDERED.

DATED: August 25, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] "Tenant Harassment shall be defined as a landlord's knowing and willful course of conduct directed at a specific tenant or tenants that causes detriment and harm, and that serves no lawful purpose, including, but not limited to, the following actions: 1. Reducing or eliminating housing services required by a lease, contract or law, including the elimination of parking if provided in the tenant's lease or contract except when necessary to comply with a court order or local or state law...16. Other repeated acts or omissions of such significance as to substantially interfere with or disturb the comfort, repose, peace or quiet of a tenant(s) and that cause, are likely to cause, or are committed with the objective to cause a tenant(s) to surrender or waive any rights in relation to

such tenancy."